

9:30 AM

LINE: 6

23-CIV-05747

SEAN VANDERVEEN, ON BEHALF OF HIMSELF AND ALL OTHERS SIMILARLY SITUATED VS
WOODMONT REAL ESTATE SERVICES, L.P.

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SITUATED
WOODMONT REAL ESTATE SERVICES, L.P.

MEHRDAD BOKHOUR
CARY G. PALMER

SEAN VANDERVEEN, ON BEHALF OF HIMSELF AND ALL OTHERS SIMILARLY SITUATED MOTION FOR FINAL APPROVAL
OF CLASS ACTION SETTLEMENT

TENTATIVE RULING:

Plaintiff Sean Vanderveen’s Motion for Final Approval of Class and PAGA Settlement is DENIED WITHOUT PREJUDICE.

This is a class and representative action alleging wage-and-hour violations against Defendant Woodmont Real Estate Services, L.P. (“Defendant”).

On September 22, 2025, the Court granted preliminary approval of the parties’ class and PAGA settlement. According to the declaration of Garvin Brown, Case Manager for settlement administrator ILYM Group, Inc. (“ILYM”), ILYM received a class list containing 493 individuals and mailed the Court-approved Notice Packet to all 493 individuals on October 24, 2025. Twenty-five Notice Packets were returned as undeliverable, 17 of which were successfully re-mailed. Notice therefore was successfully delivered to 485 of the 493 Class Members. ILYM received two requests for exclusion, no objections, and no disputes. (Brown Decl., ¶¶ 5–13.)

The favorable reaction of the Class supports approval, but it does not relieve the Court of its obligation to independently determine whether the settlement is fair, adequate, and reasonable. (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801–1802.) In conducting that review, the Court must have sufficient information concerning the amount in controversy, the strengths and weaknesses of the claims, and the realistic range of potential outcomes to determine whether the consideration received for the released claims represents a reasonable compromise. (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 128–132.)

The PAGA component requires an independent assessment as well. A PAGA settlement should be evaluated to determine whether it is fair, reasonable, and adequate in light of PAGA’s purposes of remedying Labor Code violations, deterring future violations, and maximizing enforcement of California’s labor laws. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77, disapproved on another ground in *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664, 710.)

THE PRESENT RECORD IS INSUFFICIENT FOR FINAL APPROVAL

The present showing does not permit the Court to complete the required independent assessment. Plaintiff states that Class Counsel reviewed documents produced in discovery and prepared damages models before mediation. (Bokhour Decl., ¶¶ 30–31.) The papers also generally identify litigation risks, including disputes concerning whether PAGA penalties could be established on a representative basis and whether any penalties ultimately awarded

could be reduced. The settlement administrator estimates an average class payment of \$603.81 and an average PAGA payment of \$15.21 to aggrieved employees. (Brown Decl., ¶ 17.)

The motion, however, does not sufficiently quantify the potential value of the principal claims being released or explain how Class Counsel discounted those claims to arrive at the settlement amount. The Court is not provided with a meaningful estimate of Defendant's potential exposure for the minimum-wage, overtime, meal-period, rest-period, sick-pay, wage-statement, waiting-time, expense-reimbursement, and PAGA claims, or with sufficient information concerning the principal factual and legal risks assigned to those claims. General assurances that counsel investigated the claims and concluded that the settlement is favorable do not substitute for a record permitting the Court to independently evaluate the compromise. (*Kullar, supra*, 168 Cal.App.4th at pp. 123–132.)

On renewal, Plaintiff shall provide a sufficiently detailed summary of the potential value of the material claims, the principal defenses and litigation risks affecting those valuations, and the basis for the discounts applied in reaching the settlement. Plaintiff shall separately address the valuation of the PAGA claims and explain why the PAGA allocation is fair, reasonable, and adequate in light of the purposes of PAGA.

There is an additional problem. The Settlement Agreement attached to Mr. Bokhour's declaration in support of final approval does not appear to be the revised Settlement Agreement that was submitted to the Court on August 26, 2025, and thereafter preliminarily approved. The Court cannot enter final approval without being able to identify with certainty the agreement that was preliminarily approved, disclosed to the Class, and is now presented for final approval.

Any renewed motion shall attach the final, operative Settlement Agreement that was preliminarily approved by the Court and shall clearly identify any changes from the version previously submitted.

ATTORNEYS' FEES

Class Counsel request \$176,666.67 in attorneys' fees, representing one-third of the gross settlement amount. The Court does not find a one-third percentage unreasonable merely because it exceeds a 25% federal benchmark. California permits a trial court in a common-fund case to calculate a reasonable fee as a percentage of the fund, and *Laffitte v. Robert Half International Inc.* (2016) 1 Cal.5th 480 affirmed an award of one-third of the common fund. The Court may, in its discretion, use a lodestar calculation as a cross-check on the percentage selected. (*Id.* at pp. 503–506.)

The present record nevertheless is insufficient to determine a reasonable fee.

The motion states that Class Counsel's combined lodestar is \$104,087.50 based on 141 hours of work and requests a multiplier of approximately 1.69 to reach the requested \$176,666.67 fee. The supporting declarations, however, contain material inconsistencies. Mr. Bokhour states that counsel seek \$208,333.33 in fees rather than \$176,666.67; the motion includes 20 hours of anticipated future work, while Mr. Bokhour's declaration refers to 30 anticipated hours; and both counsel's declarations refer to a multiplier of 1.83 rather than the 1.69 multiplier stated in the motion.

These inconsistencies prevent a reliable lodestar cross-check. On renewal, Class Counsel shall identify a single requested fee amount, provide an accurate calculation of the lodestar, separately identify actual and anticipated hours, and state the precise multiplier, if any, necessary to reach the requested fee.

A lodestar is calculated using the number of hours reasonably expended multiplied by a reasonable hourly rate, with the reasonable rate ordinarily measured by the prevailing rate in the relevant community for comparable legal services. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Counsel presently state, without supporting evidence, that their requested rates are comparable to or consistent with prevailing rates for attorneys of similar experience handling complex wage-and-hour litigation. On renewal, counsel shall provide sufficient evidence supporting the requested

hourly rates, including evidence concerning prevailing Bay Area rates for attorneys performing comparable work with comparable experience.

The Court also requires a sufficiently reliable record of the hours claimed. Although *Laffitte* holds that a lodestar cross-check may be conducted from declarations summarizing counsel's time and does not invariably require scrutiny of daily time sheets, it also confirms that the trial court retains discretion to consider detailed time records. (*Laffitte, supra*, 1 Cal.5th at pp. 505–506.) Given the inconsistencies in the present submissions, Class Counsel shall submit detailed time records or comparably specific summaries identifying the work performed, the attorney performing it, the hours incurred, and the applicable billing rate.

Finally, if counsel continue to seek a multiplier, they shall explain the case-specific grounds supporting it. Relevant considerations may include the novelty and difficulty of the questions presented, the skill displayed, the extent to which the litigation precluded other employment, and the contingent risk assumed, to the extent those considerations are not already reflected in the lodestar. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) Generic references to the contingent nature of litigation, “significant challenges,” “creative strategies,” or a “prolonged battle with well-funded corporations” are insufficient, particularly where this action involves one Defendant and counsel do not identify the particular challenges or extraordinary work that allegedly justify enhancement.

COSTS, SETTLEMENT ADMINISTRATION EXPENSES, AND CLASS REPRESENTATIVE AWARD

Class Counsel request reimbursement of \$14,512.80 in litigation costs, consisting of the LWDA filing fee, mediation expenses, filing fees, service-of-process expenses, and expert fees. Counsel have provided an itemized breakdown of those expenses. ILYM seeks \$7,350 in settlement-administration expenses and has submitted an invoice supporting that request. Plaintiff also seeks a \$5,000 class representative service payment and previously submitted a declaration describing approximately 25 to 30 hours devoted to the case, his assistance to counsel and with mediation, and the risks and burdens associated with serving as Class Representative.

The Court identifies no present concern with the amounts requested for costs, settlement administration, or the class representative payment. Because final approval is denied without prejudice, however, approval of those requests is deferred and will be addressed with the renewed motion.

PROPOSED ORDER

Any renewed motion shall be accompanied by a corrected proposed order.

The first paragraph shall correctly state that preliminary approval was entered on **September 22, 2025**.

The proposed order shall not state that the Court approved the fee request solely under one particular methodology. If fees are ultimately awarded, the order need state only the amount awarded unless the Court directs otherwise.

The parties need not reproduce the settlement release verbatim in the proposed order. The final and operative Settlement Agreement shall instead be attached to the proposed order and incorporated as appropriate.

DISPOSITION

Plaintiff's Motion for Final Approval of Class and PAGA Settlement is **DENIED WITHOUT PREJUDICE**.

Any renewed motion shall:

1. Attach the final operative Settlement Agreement that was preliminarily approved and provided to the Class;

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2. Provide sufficient information concerning the potential value of the released class and PAGA claims, the principal litigation risks, and the basis for the settlement discounts to permit the Court to conduct the independent review required by *Kullar* and *Moniz*;
 3. Reconcile the inconsistencies concerning the requested attorneys' fees, lodestar, anticipated hours, and multiplier;
 4. Provide sufficient support for the hourly rates and hours claimed; and
 5. Submit a corrected proposed order consistent with this ruling.

The Court will address final settlement approval, attorneys' fees and costs, settlement-administration expenses, and the requested class representative service payment upon a renewed and adequately supported motion.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Plaintiff shall prepare and submit a proposed written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide notice of the ruling as required by law. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

9:30 AM

LINE: 7

25-CIV-05784

REGINALD LEACH VS GLOBAL BLOOD THERAPEUTICS, INC.

REGINALD LEACH
GLOBAL BLOOD THERAPEUTICS, INC.

ERIN BERNSTEIN
GEORGE L GIGOUNAS

DEFENDANT GLOBAL BLOOD THERAPEUTICS, INC.'S DEMURRER TO PLAINTIFF'S COMPLAINT

TENTATIVE RULING:

This action arises from Defendant Global Blood Therapeutics' ("Defendant") development, testing, manufacturing, labeling, packaging, promotion, advertising, marketing, distribution, and sale of Oxbryta[®] (voxelotor), a prescription medication intended to treat sickle cell disease ("SCD") in adults and children four years of age and older. (Complaint, filed July 30, 2025, ¶ 1.) Plaintiff Reginald Leach ("Plaintiff") alleges that he was prescribed Oxbryta to treat his SCD and that the drug caused him to suffer more severe and frequent sickle cell anemia with crisis and acute chest syndrome. (Id., ¶ 5.)

Defendant demurs to the First Cause of Action for strict liability—failure to warn, Second Cause of Action for strict liability—design defect, Third Cause of Action for negligence, Fourth Cause of Action for breach of express warranty, Fifth Cause of Action for breach of implied warranty, and Sixth Cause of Action for negligent misrepresentation. Defendant principally contends that all six causes of action are federally preempted and that the Fourth and Fifth Causes of Action are additionally deficient under the learned-intermediary doctrine. (NODD, filed Sept. 10, 2025, pp. i:8–ii:6.)

GOVERNING STANDARDS

A demurrer tests the legal sufficiency of the pleading. In ruling on a demurrer, the Court accepts as true all material facts properly pleaded, but not contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer generally may be sustained only for defects appearing on the face of the pleading or from matters properly subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a); *Blank, supra*, at p. 318.) The complaint must be liberally construed with a view toward substantial justice between the parties. (Code Civ. Proc., § 452.)

Where a reasonable possibility exists that a pleading defect can be cured by amendment, leave to amend should be granted. The burden, however, rests on the plaintiff to demonstrate how the complaint can be amended to cure the identified defect. (*Blank, supra*, 39 Cal.3d at p. 318.)

FIRST CAUSE OF ACTION — STRICT LIABILITY—FAILURE TO WARN

The demurrer to the First Cause of Action is **OVERRULED**.